

Opinion of THOMAS, J.

that decision is still standing, it certainly is not enough to justify the numerous, unaccountable independent agencies that currently exercise vast executive power outside the bounds of our constitutional structure.

* * *

Continued reliance on *Humphrey's Executor* to justify the existence of independent agencies creates a serious, ongoing threat to our Government's design. Leaving these unconstitutional agencies in place does not enhance this Court's legitimacy; it subverts political accountability and threatens individual liberty. We have a "responsibility to 'examin[e] without fear, and revis[e] without reluctance,' any 'hasty and crude decisions' rather than leaving 'the character of [the] law impaired, and the beauty and harmony of the [American constitutional] system destroyed by the perpetuity of error.'" *Gamble v. United States*, 587 U. S. 678, 716 (2019) (THOMAS, J., concurring) (quoting 1 J. Kent, *Commentaries on American Law* 444 (1826); some alterations in original). We simply cannot compromise when it comes to our Government's structure. Today, the Court does enough to resolve this case, but in the future, we should reconsider *Humphrey's Executor* in toto. And I hope that we will have the will to do so.

II

While I think that the Court correctly resolves the merits of the constitutional question, I do not agree with its decision

of *Humphrey's Executor* (other than its holding) survived *Morrison v. Olson*, 487 U. S. 654 (1988), and *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U. S. 477 (2010). Instead, the dissent simply claims that *Humphrey's Executor* was "extended" and "clarified" in *Morrison*, *post*, at 279, attempting to breathe validity into *Humphrey's Executor* through the Court's *Morrison* decision. But the dissent's reading of *Morrison* as "extend[ing] *Humphrey's* domain" is baffling. *Post*, at 279. *Morrison* expressly repudiated the substantive reasoning of *Humphrey's Executor*. See *supra*, at 248–249.

to sever the removal restriction in 12 U.S.C. § 5491(c)(3). See *ante*, at 232–238 (plurality opinion); *post*, at 296–297. To resolve this case, I would simply deny the Consumer Financial Protection Bureau (CFPB) petition to enforce the civil investigative demand.

A

Article III of the Constitution vests “[t]he judicial Power of the United States” in the “supreme Court” and the lower federal courts established by Congress. § 1. “[T]he judicial power is, fundamentally, the power to render judgments in individual cases” or controversies that are properly before the court. *Murphy v. National Collegiate Athletic Assn.*, 584 U.S. 453, 488 (2018) (THOMAS, J., concurring); see also *Plaut v. Spendthrift Farm, Inc.*, 514 U.S. 211, 219 (1995) (“[A] ‘judicial Power’ is one to render dispositive judgments’”); Baude, The Judgment Power, 96 Geo. L. J. 1807, 1815–1816 (2008). “[T]he power exercised is that of ascertaining and declaring the law applicable to the controversy.” *Massachusetts v. Mellon*, 262 U.S. 447, 488 (1923). In the context of a constitutional challenge, “[i]t amounts to little more than the negative power to disregard an unconstitutional enactment.” *Ibid.*; see also Mitchell, The Writ-of-Erasure Fallacy, 104 Va. L. Rev. 933, 936 (2018). Thus, if a party argues that a statute and the Constitution conflict, “then courts must resolve that dispute and . . . follow the higher law of the Constitution.” *Murphy*, 584 U.S., at 488 (THOMAS, J., concurring).

Consistent with this understanding, “[e]arly American courts did not have a severability doctrine.” *Ibid.* (citing Walsh, Partial Unconstitutionality, 85 N. Y. U. L. Rev. 738, 769 (2010)). If a statute was unconstitutional, the court would just decline to enforce the statute in the case before it. 584 U.S., at 488 (THOMAS, J., concurring). That was the end of the matter. “[T]here was no ‘next step’ in which [a] cour[t]” severed portions of a statute. Walsh, *supra*, at 777.

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Our modern severability precedents create tension with this historic practice. Instead of declining to enforce an unconstitutional statute in an individual case, this Court has stated that courts must “seve[r] and excis[e]” portions of a statute to “remedy” the constitutional problem. *United States v. Booker*, 543 U. S. 220, 245 (2005); *Alaska Airlines, Inc. v. Brock*, 480 U. S. 678, 686 (1987). The Court’s rhetoric when discussing severance implies that a court’s decision to sever a provision “formally suspend[s] or erase[s] it], when [the provision] actually remains on the books as a law.” Mitchell, *supra*, at 1017. The Federal Judiciary does not have the power to excise, erase, alter, or otherwise strike down a statute. *Murphy*, *supra*, at 489 (THOMAS, J., concurring); Mitchell, *supra*, at 936. And the Court’s reference to severability as a “remedy” is inaccurate. Traditional remedies—like injunctions, declarations, or damages—“‘operate with respect to specific parties,’ not ‘on legal rules in the abstract.’” *Murphy*, *supra*, at 489 (THOMAS, J., concurring) (quoting Harrison, Severability, Remedies, and Constitutional Adjudication, 83 Geo. Wash. L. Rev. 56, 85 (2014)).

Because the power of judicial review does not allow courts to revise statutes, Mitchell, *supra*, at 983, the Court’s severability doctrine must be rooted in statutory interpretation. But, even viewing severability as an interpretive question, I remain skeptical of our doctrine. As I have previously explained, “the severability doctrine often requires courts to weigh in on statutory provisions that no party has standing to challenge, bringing courts dangerously close to issuing advisory opinions.” *Murphy*, 584 U. S., at 490 (concurring opinion). And the application of the doctrine “does not follow basic principles of statutory interpretation.” *Id.*, at 489. Instead of determining the meaning of a statute’s text, severability involves “nebulous inquir[ies] into hypothetical congressional intent.” *Booker*, *supra*, at 320, n. 7 (THOMAS, J., dissenting in part).

B

Consistent with the traditional understanding of the judicial power, I would deny CFPB’s petition to enforce the civil investigative demand that it issued to Seila. See § 5562(e)(1). Seila “challenge[d] the validity of both the civil investigative demand and the ensuing enforcement action.” Reply Brief for Petitioner 5. Seila has not countersued or sought affirmative relief preventing the CFPB from acting in the future; it simply asks us to “reverse the court of appeals’ judgment.” Brief for Petitioner 35. I would do just that. As the Court recognizes, the enforcement of a civil investigative demand by an official with unconstitutional removal protection injures Seila. See *ante*, at 211. Presented with an enforcement request from an unconstitutionally insulated Director, I would simply deny the CFPB’s petition for an order of enforcement. This approach would resolve the dispute before us without addressing the issue of severability.

The Court, however, does more. In the plurality’s view,⁵ because the CFPB raised a ratification argument before the Court of Appeals, we can (and should) reach the question of severability. See *ante*, at 232–233. But as explained more fully below, resolving this question is wholly unnecessary. Regardless of whether the CFPB’s ratification theory is valid, the Court of Appeals on remand must reach the same outcome: The CFPB’s civil investigative demand cannot be enforced against Seila.

The ratification argument presented by the CFPB is quite simple. Since its creation in 2010, the CFPB has had three Directors—first Director Richard Cordray, then Acting Director Mick Mulvaney, and now Director Kathleen Kraninger. The CFPB’s first Director, Director Cordray, issued a civil investigative demand to Seila and initiated the en-

⁵The dissent provides no analysis of severability, simply stating “*if* the agency’s removal provision is unconstitutional, it should be severed.” *Post*, at 297.

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forcement action. The CFPB has conceded that these actions were unconstitutional. But, in the Ninth Circuit, the CFPB argued that the investigative demand was ratified by Acting Director Mulvaney, who it claimed was *not* insulated by the removal provision. Brief for Appellee in No. 17–56324, pp. 13–19. In the CFPB’s view, the President could remove Acting Director Mulvaney at will because the “removal provision by its terms applies only to ‘the Director,’ not to an Acting Director,” and the Federal Vacancy Reform Act “does not limit the President’s ability to designate a different person as Acting Director.” *Id.*, at 14. Based on this ratification theory, the CFPB asked the Ninth Circuit to affirm the District Court’s order granting the CFPB’s petition to enforce its investigative demand.

The CFPB does not ask this Court to address ratification on the merits, but it does rely on its unresolved ratification theory to assert that the Court should reach severability. In doing so, the CFPB relies on the same theory that it presented to the Ninth Circuit. Thus, the only live ratification claim is the theory that Acting Director Mulvaney ratified the civil investigative demand. See *ante*, at 232–233.⁶

The resolution of the CFPB’s Acting-Director ratification theory, however, has no bearing on the outcome of the dispute before us and therefore provides no basis for addressing severability. If the Acting Director did not ratify the investigative demand, then there is obviously no need to address severability. And even if he did, the Court still does not need to address severability because the alleged ratification does not cure the constitutional injury—enforcement of an

⁶The Court-appointed *amicus* suggests that the CFPB’s current Director, Director Kraninger, ratified the enforcement proceeding by maintaining the suit after she stated her belief that the removal provision is unconstitutional. But the CFPB expressly disclaimed the notion that Director Kraninger had the power to ratify the civil investigative demand, stating that she “remains statutorily insulated from removal, regardless whether she believes the law is invalid.” Reply Brief for Respondent 7.

investigative demand by an unconstitutionally insulated Director. Seila “challenge[d] the validity of both the civil investigative demand *and the ensuing enforcement action*.” Reply Brief for Petitioner 5 (emphasis added). Acting Director Mulvaney may (or may not) have properly ratified the issuance of the investigative demand and the initiation of the enforcement proceedings. But he certainly could not ratify the continuance of the enforcement action by his successor, Director Kraninger. *Id.*, at 7. Thus, even if the CFPB’s ratification theory is valid, Seila still has an injury: It has been (and continues to be) subjected to enforcement of an investigative demand by Director Kraninger, who “remains statutorily insulated from removal.” Reply Brief for Respondent 7; see also *Free Enterprise Fund*, 561 U. S., at 513; *ante*, at 211–212. Thus, we should decline to enforce the civil investigative demand against Seila. See *supra*, at 252.

Ultimately, I cannot see how the resolution of the severability question affects the dispute before us. And even if severability could affect this case in some hypothetical scenario, I would not reach out to resolve the issue given my growing discomfort with our current severability precedents.

C

Confident that it can address the question of severability, the plurality moves on to conduct its analysis. It starts by pointing to the severability clause in the Dodd-Frank Act. See *ante*, at 235–236. That clause states: “If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held to be unconstitutional, the remainder of this Act, the amendments made by this Act, and the application of the provisions of such to any person or circumstance shall not be affected thereby.” § 5302. The plurality states that “[i]f the Director were removable at will by the President, the constitutional violation would disappear.” *Ante*, at 234. Then, relying on language in the severability clause, it con-

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cludes that the removal provision, §5491(c)(3), should be severed.

The plurality suggests that its analysis is a matter of simply enforcing the “plain language” of the severability clause. See *ante*, at 235. But I am not sure it is that simple. For one, the plurality does not actually analyze the statutory language.⁷ Second, the analysis the plurality does provide looks nothing like traditional statutory interpretation. Generally, when we interpret a statute, we do not hold that the text sets out a “presum[ption]” that can be rebutted by looking to atextual evidence of legislative intent. *Ante*, at 234. A text-based interpretation does not allow a free-ranging inquiry into what “‘Congress, faced with the limitations imposed by the Constitution, would have preferred’” had it known of a constitutional issue. *Ibid.* (quoting *Free Enterprise Fund, supra*, at 509). Nor does it consider whether Congress would have wanted to avoid “a major regulatory disruption.” *Ante*, at 237. Statutory interpretation focuses on the text.

⁷The severability clause refers to three alternative scenarios: (1) a “provision of [the] Act . . . is held to be unconstitutional”; (2) “an amendment made by [the] Act . . . is held to be unconstitutional”; and (3) “the application of [a] provision or amendment [of the Act] to any person or circumstance is held to be unconstitutional.” 12 U. S. C. §5302. The plurality assumes, with no analysis, that this case falls in the first scenario, calling for a provision to be severed from the Dodd-Frank Act. See *ante*, at 235. But, as discussed below, there is no single “provision” of the Act that has led to the constitutional injury in this case. See *infra*, at 258. It is the attempted enforcement of a civil investigative demand under §5562(e)(1) by an unconstitutionally insulated Director that causes the constitutional injury in this case. There is at least a nonfrivolous argument that this case implicates the third scenario contemplated by the severability clause—*i. e.*, “the application of [a] provision” in a certain “circumstance.” §5302. If that were so, the text of the severability clause would not require any “provision” to be severed; the unconstitutional application of §5562(e)(1) simply would not affect other provisions of the Dodd-Frank Act. Such a reading would be consistent with the traditional limits on the judicial power. See *supra*, at 252–253.

Even treating the question as a matter of pure statutory interpretation and assuming that the plurality points to the correct language, the text of the severability clause cannot, in isolation, justify severance of the removal provision. In some instances, a constitutional injury arises as a result of two or more statutory provisions operating together. See, e. g., *Free Enterprise Fund*, *supra*, at 509 (stating that the convergence of “a number of statutory provisions” produce a constitutional violation); *Booker*, 543 U. S., at 316–317 (opinion of THOMAS, J.) (explaining that “the concerted action of [18 U. S. C.] § 3553(b)(1) *and* the operative Guidelines *and* the relevant Rule of Criminal Procedure resulted in unconstitutional judicial factfinding”); Lea, Situation Severability, 103 Va. L. Rev. 735, 778–780 (2017) (discussing statutory convergences). That is precisely the situation we have in this case. As in *Free Enterprise Fund*, the provision requiring “good-cause removal is only one of [the] statutory provisions that, working together, produce a constitutional violation.” 561 U. S., at 509. The constitutional violation results from, at a minimum, the combination of the removal provision, 12 U. S. C. § 5491(c)(3), and the provision allowing the CFPB to seek enforcement of a civil investigative demand, § 5562(e)(1). When confronted with two provisions that operate together to violate the Constitution, the text of the severability clause provides no guidance as to *which* provision should be severed. Thus, we must choose, based on something other than the severability clause, which provision to sever.

Without text to guide us, the severability inquiry moves away from statutory interpretation and falls back on this Court’s questionable precedents. See *Murphy*, 584 U. S., at 489–491 (THOMAS, J., concurring). An analysis of the Court’s decisions in *Booker* and *Free Enterprise Fund* illustrates the Court’s approach to determining which provision to sever when confronting an injury caused by an unconstitutional convergence of multiple statutory provisions.

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In *Booker*, a Rule of Criminal Procedure, a subset of provisions in the Sentencing Guidelines, and a statutory provision operated together to require unconstitutional judicial fact-finding. To determine which aspect of the sentencing scheme to sever, the Court sought to divine “what Congress would have intended in light of the Court’s constitutional holding.” *Booker*, 543 U. S., at 246 (internal quotation marks omitted). The Court “recognize[d] that sometimes severability questions . . . can arise [in the context of] a legislatively unforeseen constitutional problem.” *Id.*, at 247. But it nonetheless felt qualified to craft a remedy that would “move sentencing in Congress’ preferred direction.” *Id.*, at 264. Surprisingly, that “move” did not involve enforcing the constitutional aspects of Congress’ sentencing scheme. The Court stated that “we cannot assume that Congress, if faced with the statute’s invalidity in key applications, would have preferred to apply the statute in as many other instances as possible.” *Id.*, at 248.⁸ Despite the fact that there were a plethora of cases in which mandatory Sentencing Guidelines would have posed no constitutional problem, the Court decided to “sever and excise . . . the provision that requires sentencing courts to impose a sentence within the applicable Guidelines range,” along with another provision which was not even at issue in the case. *Id.*, at 259. In essence, the Court crafted a new sentencing scheme, transforming the Sentencing Guidelines into an entirely discretionary system based on its estimation that Congress would have wanted that result.

The Court in *Free Enterprise Fund* declined to explicitly engage in *Booker*’s free-wheeling inquiry into Congress’ hy-

⁸This statement in *Booker* is irreconcilable with the plurality’s assertion here that “Congress would prefer that we use a scalpel rather than a bulldozer in curing the constitutional defect.” *Ante*, at 237. Thus, it appears that the plurality either *sub silentio* “junk[s] our settled severability doctrine,” *ibid.*, or invokes, without explanation, different assumptions for different cases.

pothetical preferences, but it did not replace that inquiry with a clear standard. In that case, the Court held that a “number of statutory provisions . . . , working together, produce[d] a constitutional violation” similar to the violation at issue here. *Free Enterprise Fund*, 561 U.S., at 509. The Court decided to sever the Board’s removal restriction. It explicitly recognized that there were multiple ways to address the constitutional injury, stating that the Court could, for example, “blue-pencil a sufficient number of the Board’s responsibilities,” or “restrict the Board’s enforcement powers.” *Ibid.* But it described these alternative options as involving “editorial freedom—far more extensive than [the] holding today—[that] belongs to the Legislature, not the Judiciary.” *Id.*, at 510. The Court did not explain, however, why the option that it chose was not also “editorial freedom” that belongs to the Legislature or why the alternatives involved “more extensive” “editorial freedom” than its preferred option. *Ibid.* The most that the Court provided was a suggestion that fewer provisions would have to be severed under its approach. *Id.*, at 509–510.

Today’s plurality opinion provides no further guidance. In fact, the plurality does not even recognize that it has made a choice between the provisions that cause the constitutional injury. It merely states that “[i]f the Director were removable at will by the President, the constitutional violation would disappear.” *Ante*, at 234. Fair enough. But if the Director lacked executive authority under the statute to seek enforcement of a civil investigative demand, § 5562(e)(1), the constitutional violation in this case would also disappear. The plurality thus *chooses* which of the provisions to sever.

In short, when multiple provisions of law combine to cause a constitutional injury, the Court’s current approach allows the Court to decide which provision to sever. The text of a severability clause does not guide that choice. Nor does the practice of early American courts. See *supra*, at 252.

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The Court is thus left to choose based on nothing more than speculation as to what the Legislature would have preferred. And the result of its choice can have a dramatic effect on the governing statutory scheme. See *Booker, supra*, at 259 (converting the entirety of the Sentencing Guidelines from a mandatory to a discretionary system). This is not a simple matter of following the “plain language” of a statute. *Ante*, at 235. It is incumbent on us to take a close look at our precedents to make sure that we are not exceeding the scope of the judicial power.

* * *

Given my concerns about our modern severability doctrine and the fact that severability makes no difference to the dispute before us, I would resolve this case by simply denying the CFPB’s petition to enforce the civil investigative demand.

JUSTICE KAGAN, with whom JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR join, concurring in the judgment with respect to severability and dissenting in part.

Throughout the Nation’s history, this Court has left most decisions about how to structure the Executive Branch to Congress and the President, acting through legislation they both agree to. In particular, the Court has commonly allowed those two branches to create zones of administrative independence by limiting the President’s power to remove agency heads. The Federal Reserve Board. The Federal Trade Commission (FTC). The National Labor Relations Board. Statute after statute establishing such entities instructs the President that he may not discharge their directors except for cause—most often phrased as inefficiency, neglect of duty, or malfeasance in office. Those statutes, whose language the Court has repeatedly approved, provide the model for the removal restriction before us today. If precedent were any guide, that provision would have sur-

vived its encounter with this Court—and so would the intended independence of the Consumer Financial Protection Bureau (CFPB).

Our Constitution and history demand that result. The text of the Constitution allows these common for-cause removal limits. Nothing in it speaks of removal. And it grants Congress authority to organize all the institutions of American governance, provided only that those arrangements allow the President to perform his own constitutionally assigned duties. Still more, the Framers' choice to give the political branches wide discretion over administrative offices has played out through American history in ways that have settled the constitutional meaning. From the first, Congress debated and enacted measures to create spheres of administration—especially of financial affairs—detached from direct presidential control. As the years passed, and governance became ever more complicated, Congress continued to adopt and adapt such measures—confident it had latitude to do so under a Constitution meant to “endure for ages to come.” *McCulloch v. Maryland*, 4 Wheat. 316, 415 (1819) (approving the Second Bank of the United States). Not every innovation in governance—not every experiment in administrative independence—has proved successful. And debates about the prudence of limiting the President's control over regulatory agencies, including through his removal power, have never abated.¹ But the Constitution—both as originally drafted and as practiced—mostly leaves disagreements about administrative structure to Congress and the President, who have the knowledge and experience needed to address them. Within broad bounds, it keeps the courts—who do not—out of the picture.

¹ In the academic literature, compare, *e. g.*, Kagan, Presidential Administration, 114 Harv. L. Rev. 2245, 2331–2346 (2001) (generally favoring presidential control over agencies), with, *e. g.*, Strauss, Overseer, or “The Decider”? The President in Administrative Law, 75 Geo. Wash. L. Rev. 696, 704, 713–715 (2007) (generally favoring administrative independence).

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The Court today fails to respect its proper role. It recognizes that this Court has approved limits on the President's removal power over heads of agencies much like the CFPB. Agencies possessing similar powers, agencies charged with similar missions, agencies created for similar reasons. The majority's explanation is that the heads of those agencies fall within an "exception"—one for multimember bodies and another for inferior officers—to a "general rule" of unrestricted presidential removal power. *Ante*, at 215. And the majority says the CFPB Director does not. That account, though, is wrong in every respect. The majority's general rule does not exist. Its exceptions, likewise, are made up for the occasion—gerrymandered so the CFPB falls outside them. And the distinction doing most of the majority's work—between multimember bodies and single directors—does not respond to the constitutional values at stake. If a removal provision violates the separation of powers, it is because the measure so deprives the President of control over an official as to impede his own constitutional functions. But with or without a for-cause removal provision, the President has at least as much control over an individual as over a commission—and possibly more. That means the constitutional concern is, if anything, ameliorated when the agency has a single head. Unwittingly, the majority shows why courts should stay their hand in these matters. "Compared to Congress and the President, the Judiciary possesses an inferior understanding of the realities of administration" and the way "political power[] operates." *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U.S. 477, 523 (2010) (BREYER, J., dissenting).

In second-guessing the political branches, the majority second-guesses as well the wisdom of the Framers and the judgment of history. It writes in rules to the Constitution that the drafters knew well enough not to put there. It repudiates the lessons of American experience, from the 18th century to the present day. And it commits the Nation to

a static version of governance, incapable of responding to new conditions and challenges. Congress and the President established the CFPB to address financial practices that had brought on a devastating recession, and could do so again. Today's decision wipes out a feature of that agency its creators thought fundamental to its mission—a measure of independence from political pressure. I respectfully dissent.

I

The text of the Constitution, the history of the country, the precedents of this Court, and the need for sound and adaptable governance—all stand against the majority's opinion. They point not to the majority's "general rule" of "unrestricted removal power" with two grudgingly applied "exceptions." *Ante*, at 215, 218. Rather, they bestow discretion on the legislature to structure administrative institutions as the times demand, so long as the President retains the ability to carry out his constitutional duties. And most relevant here, they give Congress wide leeway to limit the President's removal power in the interest of enhancing independence from politics in regulatory bodies like the CFPB.

A

What does the Constitution say about the separation of powers—and particularly about the President's removal authority? (Spoiler alert: about the latter, nothing at all.)

The majority offers the civics class version of separation of powers—call it the Schoolhouse Rock definition of the phrase. See *Schoolhouse Rock! Three Ring Government* (Mar. 13, 1979), <http://www.youtube.com/watch?v=pKSGyiTo3o> ("Ring one, Executive. Two is Legislative, that's Congress. Ring three, Judiciary"). The Constitution's first three articles, the majority recounts, "split the atom of sovereignty" among Congress, the President, and the courts. *Ante*, at 223 (internal quotation marks omitted). And by that

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mechanism, the Framers provided a “simple” fix “to governmental power and its perils.” *Ibid.*

There is nothing wrong with that as a beginning (except the adjective “simple”). It is of course true that the Framers lodged three different kinds of power in three different entities. And that they did so for a crucial purpose—because, as James Madison wrote, “there can be no liberty where the legislative and executive powers are united in the same person[] or body” or where “the power of judging [is] not separated from the legislative and executive powers.” The Federalist No. 47, p. 325 (J. Cooke ed. 1961) (quoting Baron de Montesquieu).

The problem lies in treating the beginning as an ending too—in failing to recognize that the separation of powers is, by design, neither rigid nor complete. Blackstone, whose work influenced the Framers on this subject as on others, observed that “every branch” of government “supports and is supported, regulates and is regulated, by the rest.” 1 W. Blackstone, Commentaries on the Laws of England 151 (1765). So as James Madison stated, the creation of distinct branches “did not mean that these departments ought to have no partial agency in, or no controul over the acts of each other.” The Federalist No. 47, at 325 (emphasis deleted).² To the contrary, Madison explained, the drafters of the Constitution—like those of then-existing state constitutions—opted against keeping the branches of government “absolutely separate and distinct.” *Id.*, at 327. Or as Justice Story reiterated a half-century later: “[W]hen we speak of a separation of the three great departments of government,” it is “not meant to affirm, that they must be kept wholly and entirely separate.” 2 J. Story, Commentaries

²The principle of separation of powers, Madison continued, maintained only that “where the *whole* power of one department is exercised by the same hands which possess the *whole* power of another department, the fundamental principles of a free constitution[] are subverted.” The Federalist No. 47, at 325–326.

on the Constitution of the United States § 524, p. 8 (1833). Instead, the branches have—as they must for the whole arrangement to work—“common link[s] of connexion [and] dependence.” *Ibid.*

One way the Constitution reflects that vision is by giving Congress broad authority to establish and organize the Executive Branch. Article II presumes the existence of “Officer[s]” in “executive Departments.” § 2, cl. 1. But it does not, as you might think from reading the majority opinion, give the President authority to decide what kinds of officers—in what departments, with what responsibilities—the Executive Branch requires. See *ante*, at 213 (“The entire ‘executive Power’ belongs to the President alone”). Instead, Article I’s Necessary and Proper Clause puts those decisions in the legislature’s hands. Congress has the power “[t]o make all Laws which shall be necessary and proper for carrying into Execution” not just its own enumerated powers but also “all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.” § 8, cl. 18. Similarly, the Appointments Clause reflects Congress’s central role in structuring the Executive Branch. Yes, the President can appoint principal officers, but only as the legislature “shall . . . establish[] by Law” (and of course subject to the Senate’s advice and consent). Art. II, § 2, cl. 2. And Congress has plenary power to decide not only what inferior officers will exist but also who (the President or a head of department) will appoint them. So as Madison told the first Congress, the legislature gets to “create[] the office, define[] the powers, [and] limit[] its duration.” 1 Annals of Cong. 582 (1789). The President, as to the construction of his own branch of government, can only try to work his will through the legislative process.³

³ Article II’s Opinions Clause also demonstrates the possibility of limits on the President’s control over the Executive Branch. Under that Clause, the President “may require the Opinion, in writing, of the principal Officer in each of the executive Departments, upon any Subject relating to the

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The majority relies for its contrary vision on Article II's Vesting Clause, see *ante*, at 213–214, 227, but the provision can't carry all that weight. Or as Chief Justice Rehnquist wrote of a similar claim in *Morrison v. Olson*, 487 U. S. 654 (1988), “extrapolat[ing]” an unrestricted removal power from such “general constitutional language”—which says only that “[t]he executive Power shall be vested in a President”—is “more than the text will bear.” *Id.*, at 690, n. 29. Dean John Manning has well explained why, even were it not obvious from the Clause’s “open-ended language.” Separation of Powers as Ordinary Interpretation, 124 Harv. L. Rev. 1939, 1971 (2011). The Necessary and Proper Clause, he writes, makes it impossible to “establish a constitutional violation simply by showing that Congress has constrained the way ‘[t]he executive Power’ is implemented”; that is exactly what the Clause gives Congress the power to do. *Id.*, at 1967. Only “a *specific* historical understanding” can bar Congress from enacting a given constraint. *Id.*, at 2024. And nothing of that sort broadly prevents Congress from limiting the President’s removal power. I’ll turn soon to the Decision of 1789 and other evidence of Post-Convention thought. See *infra*, at 269–273. For now, note two points about practice before the Constitution’s drafting. First, in that era, Parliament often restricted the King’s power to remove royal officers—and the President, needless to say, wasn’t supposed to be a king. See Birk, Interrogating the Historical Basis for a Unitary Executive, 73 Stan. L. Rev. 175 (2021). Second, many States at the time allowed limits on gubernatorial removal power even though their constitutions had similar vesting clauses. See Shane, The Originalist Myth of

Duties of their respective Offices.” §2, cl. 1. For those in the majority’s camp, that Clause presents a puzzle: If the President must always have the direct supervisory control they posit, including by threat of removal, why would he ever need a constitutional warrant to demand agency heads’ opinions? The Clause becomes at least redundant—though really, inexplicable—under the majority’s idea of executive power.

the Unitary Executive, 19 U. Pa. J. Const. L. 323, 334–344 (2016). Historical understandings thus belie the majority’s “general rule.”

Nor can the Take Care Clause come to the majority’s rescue. That Clause cannot properly serve as a “placeholder for broad judicial judgments” about presidential control. Goldsmith & Manning, *The Protean Take Care Clause*, 164 U. Pa. L. Rev. 1835, 1867 (2016); but see *ante*, at 213–214, 228–229, n. 11 (using it that way). To begin with, the provision—“he shall take Care that the Laws be faithfully executed”—speaks of duty, not power. Art. II, § 3. New scholarship suggests the language came from English and colonial oaths taken by, and placing fiduciary obligations on, all manner and rank of executive officers. See Kent, Leib, & Shugerman, *Faithful Execution and Article II*, 132 Harv. L. Rev. 2111, 2121–2178 (2019). To be sure, the imposition of a duty may imply a grant of power sufficient to carry it out. But again, the majority’s view of that power ill comports with founding-era practice, in which removal limits were common. See, e.g., Corwin, *Tenure of Office and the Removal Power Under the Constitution*, 27 Colum. L. Rev. 353, 385 (1927) (noting that New York’s Constitution of 1777 had nearly the same clause, though the State’s executive had “very little voice” in removals). And yet more important, the text of the Take Care Clause requires only enough authority to make sure “the laws [are] faithfully executed”—meaning with fidelity to the law itself, not to every presidential policy preference. As this Court has held, a President can ensure “‘faithful execution’ of the laws”—thereby satisfying his “take care” obligation—with a removal provision like the one here. *Morrison*, 487 U.S., at 692. A for-cause standard gives him “ample authority to assure that [an official] is competently performing [his] statutory responsibilities in a manner that comports with the [relevant legislation’s] provisions.” *Ibid.*

Finally, recall the Constitution’s telltale silence: Nowhere does the text say anything about the President’s power to

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remove subordinate officials at will. The majority professes unconcern. After all, it says, “neither is there a ‘separation of powers clause’ or a ‘federalism clause.’” *Ante*, at 227. But those concepts are carved into the Constitution’s text—the former in its first three articles separating powers, the latter in its enumeration of federal powers and its reservation of all else to the States. And anyway, at-will removal is hardly such a “foundational doctrine[],” *ibid.*: You won’t find it on a civics class syllabus. That’s because removal is a *tool*—one means among many, even if sometimes an important one, for a President to control executive officials. See generally *Free Enterprise Fund*, 561 U. S., at 524 (BREYER, J., dissenting). To find that authority hidden in the Constitution as a “general rule” is to discover what is nowhere there.

B

History no better serves the majority’s cause. As Madison wrote, “a regular course of practice” can “liquidate & settle the meaning of” disputed or indeterminate constitutional provisions. Letter to Spencer Roane (Sept. 2, 1819), in 8 Writings of James Madison 450 (G. Hunt ed. 1908); see *NLRB v. Noel Canning*, 573 U. S. 513, 525 (2014). The majority lays claim to that kind of record, asserting that its muscular view of “[t]he President’s removal power has long been confirmed by history.” *Ante*, at 214. But that is not so. The early history—including the fabled Decision of 1789—shows mostly debate and division about removal authority. And when a “settle[ment of] meaning” at last occurred, it was not on the majority’s terms. Instead, it supports wide latitude for Congress to create spheres of administrative independence.

1

Begin with evidence from the Constitution’s ratification. And note that this moment is indeed the beginning: Delegates to the Constitutional Convention never discussed

whether or to what extent the President would have power to remove executive officials. As a result, the Framers advocating ratification had no single view of the matter. In Federalist No. 77, Hamilton presumed that under the new Constitution “[t]he consent of [the Senate] would be necessary to displace as well as to appoint” officers of the United States. *Id.*, at 515. He thought that scheme would promote “steady administration”: “Where a man in any station had given satisfactory evidence of his fitness for it, a new president would be restrained” from substituting “a person more agreeable to him.” *Ibid.* By contrast, Madison thought the Constitution allowed Congress to decide how any executive official could be removed. He explained in Federalist No. 39: “The tenure of the ministerial offices generally will be a subject of legal regulation, conformably to the reason of the case, and the example of the State Constitutions.” *Id.*, at 253. Neither view, of course, at all supports the majority’s story.⁴

The second chapter is the Decision of 1789, when Congress addressed the removal power while considering the bill creating the Department of Foreign Affairs. Speaking through Chief Justice Taft—a judicial presidentialist if ever there was one—this Court in *Myers v. United States*, 272 U. S. 52 (1926), read that debate as expressing Congress’s judgment that the Constitution gave the President illimitable power to remove executive officials. The majority rests its own

⁴The majority dismisses Federalist Nos. 77 and 39 as “reflect[ing] initial impressions later abandoned.” *Ante*, at 227, and n. 10. But even Hamilton’s and Madison’s later impressions are less helpful to the majority than it suggests. Assuming Hamilton gave up on the Senate’s direct participation in removal (the evidence is sketchy but plausible), there is no evidence to show he accepted the majority’s view. And while Madison opposed the first Congress’s enactment of removal limits (as the majority highlights), he also maintained that the legislature had constitutional power to protect the Comptroller of the Treasury from at-will firing. See *infra*, at 272–273. In any event, such changing minds and inconstant opinions don’t usually prove the existence of constitutional rules.